

Amendment No. 1 to HB1978

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 2042*

House Bill No. 1978

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 67-6-318(b), is amended by deleting the subsection and substituting instead:

(b) For purposes of this section:

(1) "Qualified building materials" means:

(A) Tangible personal property purchased during the period between July 1, 2019, and December 31, 2026, that becomes part of the real property comprising the facility; and

(B) Tangible personal property purchased during the period between July 1, 2026, and December 31, 2032, that becomes part of the real property comprising the facility; and

(2) "Qualified capital investment period" means:

(A) A period beginning on or after January 1, 2019, and ending no later than December 31, 2026; and

(B) A period beginning on or after January 1, 2026, and ending no later than December 31, 2032.

SECTION 2. Tennessee Code Annotated, Section 67-6-318(e), is amended by deleting the subsection and substituting instead the following:

(e)

(1) An application with the department of revenue for the exemption on qualified building materials, as defined in subdivision (b)(1)(A), for a qualified

capital investment period, as defined in subdivision (b)(2)(A), must be filed prior to October 1, 2019.

(2) An application with the department of revenue for the exemption on qualified building materials, as defined in subdivision (b)(1)(B), for a qualified capital investment period, as defined in subdivision (b)(2)(B), must be filed prior to October 1, 2026.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.